

---

**Journal**

2012 YLR 2231

---

**Court**

SUPREME COURT OF AZAD JAMMU & KASHMIR

---

**Date**

2011-08-25

---

**Appeal No.**

CIVIL APPEAL NO. 70 OF 2011

---

**Judge**

MUHAMMAD AZAM KHAN, C.J. AND CH. MUHAMMAD IBRAHIM ZIA

---

**Parties**

F1RDOS BAKHAT (APPELLANT) VERSUS JAVED KHAN THROUGH ATTORNEY AND ANOTHER RESPONDENTS

---

**Lawyers**

SYED NAZIR HUSSAIN SHAH KAZMI, ADVOCATE FOR APPELLANT. SARDAR ATTA ELLAHI ABBASI, ADVOCATE FOR RESPONDENTS.

---

**Statutes**

AZAD JAMMU AND KASHMIR FAMILY COURTS ACT (XI OF 1993) - S. 5, SCHEDULE AND S. 14(1) AZAD JAMMU AND KASHMIR INTERIM CONSTITUTION ACT (VIII OF 1974) - S.42

---

## Judgment

CH. MUHAMMAD IBRAHIM ZIA, J.-The captioned appeal with leave of the Court has been filed against the judgment of Shariat Court dated 24-3-2011 through which Family appeal filed by respondent was accepted.

2. Brief facts giving rise to the instant appeal are that the present appellant filed a suit for dissolution of marriage before the learned Family Judge Kotli on 10-12-2009 and also appended a list of witnesses, consisting of Siddique Qureshi, Pervaiz and Babu Muhammad Lateef. The appellant could not produce the said witnesses, therefore, she filed another list of witnesses on 22-6-2010, which was disallowed vide order dated 18-9-2010. The appellant again filed an application along, with a list of some other witnesses on 4-11-2010. Respondents herein, filed objections on the said application. The learned Family Judge Kotli, vide order dated 1-12-2010, accepted the' said application and allowed the appellant to produce the witnesses. After this, statements of witnesses named, Muhammad Siddique son of Feroz Din, Matloob Khan son of Mehboob Khan and Muhammad Shabbir son of Muhammad Akbar, were recorded by the trial Court in pursuance of the said order and the only statement of the appellant is to be recorded in the suit before the learned Family Judge Kotli. The above said order of learned Family Judge Kotli dated 1-12-2010 was challenged by the respondents herein, in the Shariat Court, through an appeal. Shariat Court, after hearing arguments of both the learned counsel for the parties, accepted the appeal and set aside the order of learned Family Judge Kotli dated 1-12-2010, hence, the present appeal.

3. Syed Nazir Hussain Shah Kazmi Advocate, the learned counsel for the appellant, while arguing the case of his client contended that the impugned order of the learned Family Judge Kotli was an interlocutory order and not a final judgment, hence, appeal filed by respondent before Shariat Court was liable to be dismissed because no appeal lies against an interlocutory order. The learned counsel further pressed into service that the judgment and decree of the Family Judge Kotli, are appealable before the Shariat Court, however, no appeal lies against an interlocutory order recorded by the Family Court. The learned counsel further contended that the appellant is a "Parda Nasheen" lady, hence, according to list of witnesses filed by her, she could not produce witnesses before the learned Family Judge Kotli, however, she filed another application in which she prayed for allowing her to produce witnesses mentioned in the new application. The application was accepted by the learned Family Judge Kotli vide order dated 1-12-2010. The learned counsel further submitted that no illegality or irregularity has been committed by the learned Family Judge Kotli while allowing the application. The learned counsel is of the view that the learned single Judge in the Shariat Court is A not justified in setting aside the order passed by learned Family Judge Kotli, dated 1-12-2010. The said order was not a final order and was an interlocutory order through which application for summoning witnesses was accepted. The learned counsel placed reliance upon following authorities: - (i) 2004 MLD 510, (ii) 2005 SCR 409 and (iii) 2006 SCR 104.

4. On the other, hand. Sardar \tta Ellahi Abbasi Advocate, the learned counsel for the respondents, contended that the order passed by learned f-annly Judge Kotli dated 1-12-2010 is a final order, hence, the same was appealable before the Shariat Court and the learned Single Judge in the Shariat Court has committed no illegality or irregularity while accepting the appeal and setting aside the order of learned Family Judge Kotli dated 1-12-2010. The learned counsel placed reliance upon (PLD 1990 Lah. 38) and (PLJ 1979 Lah. 514 (sic)).

5. We have heard the learned counsel for the parties and have also gone through the file of this Court and that of the Shariai: Court as well.

6. The learned single Judge in the Shariat Court, vide his judgment dated 24-3-2011 has held that the order passed by learned Judge Family Court Kotli dated 1-12-2010, through which he has allowed some witnesses to be produced by the appellant, was a final order and not an interlocutory order and the appeal against the said order before the Shariat Court is competent. We are unable to agree with the findings of the Shariat Court recorded on 24-3-2011 on the ground that the application filed by (he appellant for allowing her to produce some other witnesses was accepted by the learned Family Judge Kotli vide order dated 1- 12-2010 and this order is an interlocutory order and not a final judgment, hence, appeal against the said order was not maintainable before the Shariat Court. For quick appreciation of the matter, we reproduce here section 14(1) of the Azad Jammu and Kashmir Family Courts Act, 1993 which reads as under:- « Appeals:- (1) Notwithstanding anything provided in any other law for the time being in force, a decision or a decree passed by a Family Court shall be appealable within thirty days to the Azad Jammu and Kashmir Shariat Court only.

The above provision of the Family Court Act, 1993 makes it clear that the only decision or decree of Family Court is appealable before the Shariat Court. Our this view finds support from a case titled *Mst. Naseem Bashir v. Abdul Jabbar*, reported as 2004 MLD 510: This Court held as under "A bare reading of the provisions of law provided for filing of appeal before the Shariat Court shows that it is only a decision or a decree which had been made appealable to the Shariat Court. The intention of the legislature while enacting this law has been given in the preamble that the same was legislated for expeditious settlement and disposal of disputes relating to marriage and family affairs, therefore, to avoid protracted litigation no appeal or revision is provided against the interim orders. Even there were certain decrees which have not been made appealable before the Shariat Court which further supports the above view.

Though a decision or a decree has not been defined in this Act and the application of the provisions of the Evidence Act and the Civil Procedure Code have been excluded. However, we seek guidance from the other statutes where the decisions and decrees have been defined. The word "decree" has been defined in Civil Procedure Code in subsection (2) of section 2 dealing with definitions as follows decree means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint (the determination of any question within section 144, and an order under Rules 60, 98, 99, 101 or 103 of the Order XXI) but shall not include : - (a) any adjudication from which an appeal lies as an appeal from an order, or (b) any order of dismissal for default.

Explanation.-A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final.

In a case titled *Mst. Shehnaz Bibi and 2 others v. Munawar Din*, reported as (2005 SCR 409), it is held that:- "We have heard the learned counsel for the parties and also gone through the record, Two suits, one on behalf of the appellant and the other by respondent No.1 were filed before the Judge Family Court Muzaffarabad which were consolidated and issues arising out of the pleadings of the parties were framed. The respondent filed an application before the trial Court for examination of finger prints of the appellant. The trial Court after hearing the arguments dismissed the application. Thereafter, the appeal was preferred before the Shariat Court of Azad Jammu and Kashmir which was accepted and the learned Judge directed the trial Court for examination of the finger prints. It is primarily to be seen as to whether the appeal against any interim order is competent. A perusal of the AJ&K Shariat Court Act reveals that no appeal is competent against an interim order. To avoid protracted litigation no appeal or revision is

provided against an interim order." In another case titled Muhammad Ramzan v. Rukhsana Kausar and others, reported as (2006 SCR 104), this Court recorded following observation "I have considered the respective arguments of the learned counsel for the parties and gone through the record of the case. In the preamble of the AJ&K Family Courts Act, 1993, the purpose of enacting this law has been given in clear words that for expedient settlement and disposal of matrimonial disputes, this law has been enacted and its purpose was to avoid protracted litigation between the parties. Under section 14 of the AJ&K Family Courts Act, 1993, a decision or a decree passed by a Judge Family Court has been made appealable before the Shariat Court. In the present case, it was interlocutory order which was not appealable before the Shariat Court. The reasons in the light of provisions of aforesaid Act have been discussed by this Court in the aforementioned authorities in detail which need not be repeated in this order. Therefore, no error was committed by the Shariat Court while dismissing the appeal of the petitioner herein." 7. The learned single Judge in the Shariat Court has also held that the application filed by the appellant before the learned Family Judge Kotli was a review application and the learned Judge Family Court has no jurisdiction to entertain such applications. This finding of the learned Judge of the Shariat Court is contrary to record. The application filed by the appellant for summoning witnesses was not a review application, rather it was an application as is apparent from the title of the application which reads as under:- 8. Contention of the learned counsel for the respondents that the order passed by the learned Family Judge Kotli was a judgment and it was not an interlocutory order, has no substance and we have discussed this aspect of the matter in the preceding paragraph of the judgment. The case-law referred to and relied upon by the learned counsel for the respondents need not to be discussed for the reason that in presence of authoritative judgments of this Court, we cannot rely upon the judgments of the High Courts of Pakistan which stood recorded before 1993, whereas the Family Courts Act, and the Shariat Court Act, were enforced in the Azad Jammu and Kashmir in the year 1993. It has also been noticed that after acceptance of application filed by the appellant, the statements of the witnesses summoned, have already been recorded by the trial Court, thus, even on merit, after this development, the whole subsequent practice becomes futile and academic.

D In the light of what has been stated above, we accept the appeal and set aside the judgment of the Shariat Court dated 24-3-2011 with no order as to costs.

H.B.T./25/S.C.(AJ&K)

---

**easylaw Case No.**  
1153133

Download Case